

ASU Mountaineering Club Outdoor Activities Liability Release and Assumption of Risk Agreement

This release and assumption of risk agreement is a legally binding contract between the Participant and the organizers, officers, and represented with the ASU Mountaineering Club ("MCA"). By signing this agreement the Participant acknowledges, understands, and agrees to the terms below.

1. Acknowledgment of active and inherent risks

Participant understand that MCA conducts outdoor activities including, without limitation, day and backcountry hiking, overnight camping, rock climbing (including top-rope, sport, and lead climbing), bouldering, volunteer work, and related group travel and transportation. Participant acknowledges that these activities are inherently risky and serious injury, permanent disability, paralysis, or death can result from participation. Such risks include, but are not limited to: slips and falls, rockfall, rope and equipment failure, weather extremes, animal encounters, road and vehicle accidents, exposure to allergens, and negligence of other participants.

2. Voluntary Participation and Assumption of Risk

Participant is voluntarily participating in these activities and expressly assumes all risk associated with participation, whether known or unknown, foreseeable or unforeseeable, inherent to the activity, or arising from the negligence of MCA or others, except to the extent that liability cannot be waived by law.

3. Fitness, Medical Condition, and Preparation

Participant represents and warrants that they are physically and mentally capable of participating in the selected activities, that they that they are not under the influence of any alcohol, drugs, or any other substance that would impair safe participation, and that they have disclosed to MCA all medical conditions, allergies, medications, or physical limitations that could affect participation or necessitate emergency treatment. Participant agrees to follow pre-trip communications, packing lists, safety briefings, and any reasonable directions from trip leaders.

4. Release and Waiver of Liability

To the fullest extent permitted by law, Participant releases, discharges, and covenants not to sue MCA and its affiliates and members from any and all liability, claims, demands, causes of actions, damages, or costs, whether arising out of negligence (ordinary or gross), breach of contract, strict liability, or otherwise, for personal injury, property damage, wrongful death, or any other loss arising from or connected with

participation in MCA. This release is intended to apply to all claims by the Participant, the participant's heirs, executors, administrators, legal representatives, and assigns

5. Indemnification and Hold Harmless

Participant agrees to indemnify, defend, and hold harmless MCA from any and all claims, demands, suits, losses, liability, damages, expenses, including attorney's fees and costs, arising from participant's negligent acts, omissions, willful misconduct, violation of rules, failure to follow instructions, or breach of this Agreement, whether arising before, during, or after the activity.

6. Consent to Emergency Medical Treatment

Participant authorizes MCA and its representatives to obtain, at participants expense, emergency medical care deemed necessary in the event of injury or illness. Participant understands that MCA is not responsible for the cost of such care or for providing medical care beyond arranging or facilitating emergency response.

7. Compliance with Rules

Participant agrees to comply with all applicable laws, landowner rules, permit conditions, and MCA policies, and to follow the directions of trip leaders and guides. Failure to comply may result in removal from activities without refund and may subject Participant to further liabilities for costs incurred as a result of removal or rescue.

8. Media Release

Participant grants MCA the irrevocable right to photograph, record, and use participants' image, voice, or likeness in any promotional or educational materials, publications, websites, or social media, without compensation, unless prohibited by law. Participant may revoke this consent only in writing delivered to MCA in advance of an activity, and the revocation will not affect materials already created or distributed.

9. Severability; Governing Law

If any provision of this Agreement is found to be unenforceable, the remaining provisions shall remain in full force and effect. This agreement shall be governed by the laws of the state or province where MCA is organized or where the activity takes place, subject to mandatory legal protection in Participant's jurisdiction

10. Acknowledgment of understanding

Participant acknowledges that they have carefully read this Agreement, understands its terms, and are signing up freely and voluntarily. Participant understands that by signing they are giving up substantial legal rights, including the right to sue, and acknowledge

that this Agreement is binding upon themselves and their heirs, assigns, personal representatives, and next of kin.

Participant Full Legal Name:

Participant Signature:

Sign to indicate agreement to all terms above

Date Signed:

Medical Information

Emergency contact name: _____

Emergency contact phone number: _____

List of allergies, chronic conditions, medications, dietary needs, or anything else you think we should know:
